



POLICE DEPARTMENT

May 5, 2026

-----X

In the Matter of the Charges and Specifications :

Case No.

- against - :

C-030854

Detective Louis DeFranco :

Tax Registry No. 952648 :

PBSI Ferry Security Unit :

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

John Bennett & Emily Collins, Esqs.
Department Advocate's Office
One Police Plaza, 4th Floor
New York, NY 10038

For the Respondent:

John Arlia, Esq.
Wenger & Arlia, LLP
20 Vesey Street, Suite 210
New York, NY 10007

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Said Detective Louis DeFranco, while off duty and assigned to the Police Commissioner's Office, on or about June 2, 2024, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department, in that said Detective engaged in a physical altercation with a person known to the Department and withheld said person's telephone in order to prevent said person from contacting 911. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 10 and 11, 2026. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The Department called Elaina Mariani and Police Officer John Lattanzio as witnesses. Respondent called Louis DeFranco, Sr. and Kathy DeFranco as witnesses, and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

Having evaluated all the evidence in this matter, I find Respondent Guilty of the charged misconduct. I recommend a forfeiture of 65 days: the presumptive penalty of 30 suspension days (previously served); 15 vacation days for Respondent confiscating Ms. Mariani's phone and 15 vacation days for preventing her from calling 911, to run concurrently with each other; 10 vacation days for engaging in the altercation while Respondent's son, M, was present; and ten suspension days for the infliction of physical injury upon Ms. Mariani. I further recommend a one-year period of dismissal probation and 24 weeks of counseling.

ANALYSIS

Introduction

The alleged misconduct in this case arose from an encounter on June 2, 2024, between Respondent and Elaina Mariani, the mother of his minor son, M, in the home they shared in Nassau County. For nine years, he and Ms. Mariani had been in an intimate relationship. They were engaged to be married until Respondent broke off the engagement, on or about April 10, 2024. Approximately five days before the encounter, Respondent did not return home and did not respond to Ms. Mariani's numerous attempts to contact him by telephone and text message.¹ At some point prior to June 2nd, Ms. Mariani formed the belief that Respondent either had been, or was, involved in another relationship.

The incident took place at approximately 1940 hours on June 2nd, when Respondent's parents, Louis DeFranco, Sr. and Kathy DeFranco, brought M home after he played in a baseball game. Respondent met his parents and M at the game, then returned with them to his residence.

Elaina Mariani

Elaina Mariani testified that at the time of the incident, she and Respondent had been in an eight-year relationship, were living together, shared a son in common, and were previously engaged to be married.

She recalled that on June 2, 2024, at approximately 1700 hours, Respondent's parents came to her home to pick up M's baseball equipment before taking him to his Little League baseball game. Ms. Mariani explained that, given the state of her relationship with Respondent, and not having heard from him in the previous five days, she had begun packing his belongings

¹ Ms. Mariani estimated that the last time she had seen Respondent was the previous Tuesday (T. 38). The Tribunal takes judicial notice that the Tuesday before the incident was May 28, and that June 2 was a Sunday.

and placing them outside, in front of the garage (T. 30-33). She explained further that she had recently found out that Respondent was involved with a female MOS. Ms. Mariani testified that it was clear to her that their relationship was over, so she asked Respondent to come home so that they could discuss “what happened the Thursday or Friday before,” as well as the unwinding of the relationship, including financial matters. According to Ms. Mariani, Respondent did not reply to her request; she then asked him again to come home to work things out “as adults,” adding that if he did not come home, she would inform their friends and family of the identity of the individual she believed he had “cheated” on her with. She testified that she had also sent Respondent a text message warning him not to come home, despite her repeated prior attempts to get him to do the opposite (T. 34-37, 71-73).

Ms. Mariani testified that after the baseball game, Mr. and Mrs. DeFranco brought M home; she was surprised to see that Respondent was also present. She acknowledged her extreme displeasure at seeing Respondent, given his unwillingness to respond to her earlier messages. As Respondent entered the home, Ms. Mariani recalled standing in the doorway, where he pushed past her, using his shoulder to move her aside. She testified that she attempted to push him out of the house, but Respondent placed both hands on her shoulders and pushed her again, causing her to fall onto her “bottom.” Following this, she recalled that she and Respondent moved toward the bedroom as Respondent began collecting his belongings. At that time, she observed Mrs. DeFranco inside the home and discerned that she had locked the front door behind her. Ms. Mariani testified that she told Mrs. DeFranco to leave, stating, in sum and substance, “I’m going to say a lot of disrespectful things that you shouldn’t hear,” a request to which Mrs. DeFranco did not accede. She further noted that at this time M was outside in the driveway with Louis DeFranco, Sr. (T. 36-40, 92).

Ms. Mariani testified that as she and Respondent continued to argue, he eventually locked himself in a bathroom. When he finally left the bathroom, they began shoving each other. She described that “both of our hands were flying,” and that while Respondent held items in his hands, she attempted to smack them out of his grasp. While unable to recall exactly how it happened, Ms. Mariani testified that her head “bounced” off the floor and that Respondent used his legs to restrain her, with her arms pinned to her body and his arm pressing into her chest area (T. 41-44, 95, 108).

As she was pinned to the floor, Ms. Mariani realized her cell phone was in her back pocket. She maneuvered her hand to retrieve it and attempted to call 911 when she heard Mrs. DeFranco shout, “She’s calling 911. She’s got the phone.” Ms. Mariani testified that Respondent then grabbed the phone from her hand and stated, “You’re not calling 911.” Respondent then slammed the phone into her face, striking her left eye and cheek area and causing a cut below her left eyebrow. At this point, Ms. Mariani conceded that she “got pretty wild” and admitted to scratching Respondent’s neck to free herself from beneath him. She also admitted biting Respondent on his left arm, explaining that it was the arm he used to restrain her chest (T. 45-47, 56, 115).

Ms. Mariani testified that after Respondent released her, she ran for the house phone because he still had her cell phone. She recalled that as she began dialing 911, Respondent “ran after me, grabbed it, and slammed it on the floor,” causing the phone to break apart. She then ran outside, retrieved M from Louis DeFranco, Sr., and fled across the street to the home of Police Officer John Lattanzio. When Police Officer Lattanzio answered the door, Ms. Mariani asked him to take M inside and to call 911. She testified that Respondent and his mother had followed her across the street to Police Officer Lattanzio’s home and told Lattanzio, who had

been joined by his wife, not to call 911. Ms. Mariani testified that Police Officer Lattanzio instructed Respondent to return her phone if he had it. She testified further that when Lattanzio made that statement, Respondent was holding her phone in his hand² (T. 48-54).

On cross-examination, Ms. Mariani conceded that she was upset that Respondent had been unfaithful and refused to respond to any of the messages she sent him in the five days preceding the incident; she further admitted to leaving him nasty voicemail messages. Ms. Mariani testified further that she was surprised when Respondent appeared at their home that evening because she had sent him a text message telling him not to come (T. 68-72). While she acknowledged the presence of a bottle of wine in the home, she denied being intoxicated at the time of the altercation and denied consuming any alcohol that day (T. 72-74, 88, 113-115). Ms. Mariani also denied striking Respondent with a baseball bat during the altercation, but acquiesced that she struck him with her hands, scratched him and bit him (T. 77-78, 95, 98, 102).

Ms. Mariani conceded that when Internal Affairs investigators asked her to describe the altercation, she provided a narrative in which she asserted that she momentarily “blacked out” when Respondent was holding her down (T. 83-85). She acknowledged that in the same interview, she opined that Respondent had not deliberately struck her in her face with her cell phone; she explained that she now believed that it could have been deliberate but was still unsure (T. 85-87, 89-90, 91-92). Ms. Mariani testified that as she attempted to prevent Respondent from entering the home, he intentionally pushed her aside with his shoulder, later adopting counsel for Respondent’s characterization of Respondent’s act as a “shoulder check” (T. 92-94, 97).

Ms. Mariani testified that she took M from Louis DeFranco, Sr. because she was afraid that Respondent would attack her outside and did not want M to witness it; she also believed that

² Ms. Mariani testified that her phone was eventually returned to her by someone other than Respondent (T. 52).

Louis DeFranco, Sr. would be unable to assist her if Respondent did continue the altercation because he was recovering from an unrelated injury (T. 101). She testified that when Kathy DeFranco said, “[Respondent], she’s calling 911,” she did so in a “panicked” manner (T. 104). Ms. Mariani admitted that she sold a vehicle, which she and Respondent used, without having title to it (T. 111-13). At the time of the incident on June 2, 2024, she weighed approximately 120 pounds and stood approximately 5’3” tall (T. 117).

Police Officer John Lattanzio

Police Officer John Lattanzio testified that he has been a Member of Service for 13 years and is acquainted with Respondent as a neighbor. He described their relationship as a cordial, “hi and bye” relationship, with occasional discussions about cars, and no prior conflicts (T. 129).

He testified that on June 2, 2024, at approximately 1940 hours, he was at home with his family, when he heard sobbing outside his door. Shortly thereafter, the doorbell rang; when he opened his door, he observed Ms. Mariani and M, appearing “frantic and panicked,” and “hysterical.” Police Officer Lattanzio testified that he observed scratching and redness on her face. He testified that as he was ushering them into his home, Respondent approached his house. Lattanzio testified that Ms. Mariani stated, “He beat me up,” referring to Respondent. Respondent, who appeared “wound up” and “frantic,” replied, “She did it to herself” (T. 130-132).

Police Officer Lattanzio further testified that Ms. Mariani told him, and his wife, to call the “cops” because Respondent had her phone. Although he could not confirm whether Respondent indeed had Ms. Mariani’s phone at that time, he advised Respondent that if he did have it, he should return it. As Lattanzio’s wife was on the phone with police, Respondent told her “not to call the police” (T. 133-34).

On cross-examination, Police Officer Lattanzio testified that while he observed scratches and bruises on Ms. Mariani and Respondent, he had no independent knowledge of what had transpired inside their home. He testified that when he encountered Ms. Mariani, she was frantic, barefoot and had brought M from across the street (T. 134, 140-142).

Respondent

Respondent testified that he and Ms. Mariani have a child in common, M; they jointly owned a home; and, at one point, were engaged to be married prior to the physical altercation on June 2, 2024. He claimed that he had remained at work the previous week because being in “any proximity, close proximity, to Ms. Mariani would not have been a safe place to be” (T. 218-19).

He explained that he was the one who had called off their engagement and the relationship was not going any farther; when he had attempted to discuss a division of their assets with Ms. Mariani, the discussions resulted in arguments and fighting. Respondent testified further that she had accused him of infidelity. He testified that Ms. Mariani had attempted to contact him, via text message and telephone calls, for five days before the encounter on June 2, 2024; some of her messages were threatening and others implored him to return home (T. 220). Respondent testified that on June 2, 2024, the reason he went to the home was to retrieve clothes for work; he asked his parents to accompany him because he believed Ms. Mariani would “be more in control” if they, and M, were present (T. 221-22, 249).

Respondent testified that when he arrived at the residence, he walked toward the front door and saw Ms. Mariani come out of the house; according to Respondent, they had no verbal or physical contact at that point. He testified that once they entered the home, however, Ms. Mariani struck him on his head and grabbed him around his neck. Ms. Mariani then jumped on

his back, causing them both to fall to the floor; she then reached for a baseball bat from M's equipment bag and attacked him with it (T. 223-27, 229).

Respondent testified that he looked up and saw the bat raised to Ms. Mariani's shoulder level; at this time, both he and Ms. Mariani were on their knees. He testified that he put his arm up and was struck on his forearm with the bat before being able to grab it. According to Respondent, Ms. Mariani was trying to wrest the bat from his grasp by biting and scratching him, but he eventually was able to take it away from her and move it off to the side (T. 230, 243).

Respondent recalled seeing his mother standing inside the home during the altercation (T. 228, 235). He testified that Ms. Mariani began to get tired, enabling him to stand and go up the stairs to the first floor of the home (T. 235). Respondent noted that when he stood up, he could not "leave through the front door" as "[t]he front door [wa]s locked" (*Id.*). He claimed that Ms. Mariani followed him up the stairs and resumed hitting him; while he attempted to protect his head with his hands, Ms. Mariani swung her hand while holding her mobile telephone and struck his mouth, specifically, his upper lip (T. 236). Respondent testified that the phone then fell from her hand to the floor; when he picked it up, Ms. Mariani began screaming, "Help me . . . I need help . . . call 911" (T. 237, 239). According to Respondent, Ms. Mariani then ran through the front door, continuing to scream "at the top of her lungs;" near the front door, she encountered M, who was "crying and hyperventilating" (T. 240). He testified that Ms. Mariani "dragged" M around "into and out of the front door;" she then declared that she was "going to the neighbor's house" (T. 241).

Respondent testified that Ms. Mariani took M across the street to Police Officer Lattanzio's home; he followed behind them until they reached Lattanzio's front door. According to Respondent, Lattanzio came out of his home and ensured that M went inside. Respondent

testified that there was “incoherent yelling and screaming” . . . and he was unsure of what Ms. Mariani was saying; he attempted to explain to Lattanzio “what was going on, because I could only imagine what it appeared to seem like” (*Id.*).

Respondent denied withholding Ms. Mariani’s mobile phone to prevent her from calling 911; he testified that he believed police were already responding because he heard sirens in the area. He clarified that what he said to Police Officer Lattanzio was, “You don’t need to call 911; they’re already here” (T. 241-42). Respondent testified that after Lattanzio told him to return Ms. Mariani’s phone to her, he placed it on the back of a car that was in the driveway (T. 242).

Respondent testified further that he believed Ms. Mariani was intoxicated based upon her face being flushed and smelling alcohol on her breath as she attacked him; he also claimed that her gait and balance, as she ran down the stairs and, eventually, across the street, was indicative of her being intoxicated (T. 244-45).

Respondent acknowledged that at the time of the altercation he weighed approximately 215 pounds and stood approximately 5’10” tall, while Ms. Mariani weighed approximately 130 pounds and stood approximately 5’3” tall. He testified that all her injuries resulted from his efforts to defend himself but that he never struck her (T. 245). Respondent detailed that she sustained a bruise on her knee when they fell to the floor after she jumped on his back (*Id.*). He testified that when they were grappling on the floor, Ms. Mariani’s fingernail lacerated her eyelid, causing it to bleed (T. 233).

On cross-examination, Respondent denied that he was struck from behind by Ms. Mariani swinging a bat (T. 251). He conceded that during his Departmental interview, he did not state that he had been struck with a bat on his forearm and further did not state that Ms. Mariani had struck him with her mobile phone (T. 251-53, 258-59, 261, 271). He further acknowledged that

although he was in possession of Ms. Mariani's phone when she ran out screaming for police assistance, he did not call 911 because he did not believe police intervention was necessary (T. 262).

Respondent testified that while he did not provide Ms. Mariani with notice that he was going to appear at home that evening, he was not required to because he paid the mortgage (T. 262-64). He further conceded that he had reason to believe that she would be upset with him whenever he returned (T. 264). Respondent denied breaking the house phone, stating that it was not involved in the altercation and that he had not learned about the broken house phone until subsequent Department investigations were underway (T. 267-68).

Louis DeFranco, Sr.

Louis DeFranco testified that he is Respondent's father and that he has known Ms. Mariani for approximately eight years. On June 2, 2024, both Mr. DeFranco and his wife, Kathy DeFranco, went to the home where Respondent, Ms. Mariani and M resided to pick up M's baseball uniform before taking him to a game. Mr. DeFranco recalled that Respondent met them at the game and stated he needed to retrieve clothing from the home when they dropped M off (T. 154-56).

Mr. DeFranco recalled when he, Mrs. DeFranco and M reached Ms. Mariani's home, she stepped out of the house and stood in the doorway. He testified that as Respondent walked past her, Ms. Mariani began "hitting and punching" him, while Respondent turned away to protect himself. Mr. DeFranco testified further that M became extremely upset, causing him to move M from the front of the house to his car. Once Respondent and Ms. Mariani went inside the home, he and M remained outside. A short time later, he observed Ms. Mariani exit the house, then take M, and run across the street, screaming that she had been hit (T. 157-59, 164). He testified

that he believed Ms. Mariani was intoxicated based on her mannerisms and the presence of an open wine bottle on the counter inside the house (T. 161-62, 166).

Kathy DeFranco

Kathy DeFranco testified that she is Respondent's mother and M's grandmother. She stated that on June 2, 2024, she and her husband, Louis DeFranco, Sr. stopped by Ms. Mariani's home earlier in the day with M, so that they could retrieve M's baseball uniform and equipment in preparation for a game he was playing that afternoon. Mrs. DeFranco recalled that Ms. Mariani "seemed fine" when she and Mr. DeFranco first arrived to pick up M's baseball uniform. According to Mrs. DeFranco, M had been staying with her and Mr. DeFranco during the previous week. She detailed that Respondent met them at the game and remained for its duration, eventually joining his parents and M for a post-game trip to McDonald's. Mrs. DeFranco recounted further that Respondent asked his parents to accompany him back to the house when they dropped off M because he needed to retrieve some clothing and because he did not know what Ms. Mariani's state of mind would be when she saw him. She testified that she understood the state of Respondent's relationship with Ms. Mariani at that point to be acrimonious, stating that they "were pretty much done with their relationship" (T. 184-88).

Mrs. DeFranco stated that once they returned to Ms. Mariani's home and walked up the driveway, Ms. Mariani came out of the house and "whacked" Respondent in the back of the head and kept hitting him. She testified that M became hysterical and began vomiting; Louis DeFranco, Sr. then moved M away from the front of the house to their car. According to Mrs. DeFranco, Respondent and Ms. Mariani went inside the home, where Ms. Mariani kept hitting him and eventually removed a baseball bat from M's equipment bag before attempting to strike

him with it. She asserted that Ms. Mariani knocked Respondent down onto a set of steps and attacked him (T. 188-90).

Mrs. DeFranco testified that Respondent tried to defend himself against Ms. Mariani and was eventually able to take the bat away from her. She testified further that when Ms. Mariani renewed her attack by taking her cell phone and attempting to strike him with it, Respondent fled up a staircase. According to Mrs. DeFranco, Ms. Mariani struck Respondent with her phone, causing it to fall to the floor. She observed him pick up the phone, then observed Ms. Mariani run from the house, screaming, "He hit me; call 911" (T. 189-90).

Mrs. DeFranco testified that she did not observe anyone going upstairs in the home and did not see Respondent lock himself in a bathroom. She offered that when Ms. Mariani yelled, "He beat me up," her reaction was, "... Absolutely not. And it was just unbelievable that she was screaming, running through the streets, and M was hanging onto her leg hysterically crying" (T. 190-91).

Mrs. DeFranco remembered that she saw a wine bottle on a kitchen counter in the house with a partially filled wine glass next to it; she believed that Ms. Mariani was intoxicated, based upon her demeanor. Mrs. DeFranco claimed to have seen Ms. Mariani being intoxicated on many previous occasions. When she was asked several times to describe what about Ms. Mariani's demeanor that day suggested that she was intoxicated, she testified, "She just gets this look about her in her face" and "[j]ust her behavior and the look about her" (T. 192-93).

Mrs. DeFranco testified that she was unaware that Ms. Mariani had been trying to contact Respondent for some time prior to June 2, 2024, and denied having any discussion with Ms. Mariani about the state of her relationship with Respondent (T. 194).

On cross-examination, Mrs. DeFranco confirmed that she and Louis DeFranco, Sr. had their mobile telephones with them on June 2, 2024 (T. 203). She reiterated her assertions that Ms. Mariani had struck Respondent with a bat, and that she told police officers who responded to the scene of that fact. She then conceded she told the police officers that Ms. Mariani had attempted to hit Respondent with a baseball bat, but that the bat was taken away from her (T. 204-05). Mrs. DeFranco then claimed a present recollection that Ms. Mariani had not only attempted to strike Respondent but that she did strike him around his shoulder (T. 206). She conceded that she neither called 911 at any point during the incident nor called Louis DeFranco, Sr. for assistance (T. 207-08).

Credibility

Respondent and Ms. Mariani offer conflicting accounts of the same incident in which they were both participants. Where, as here, the parties present competing versions of events, the factfinder's determination turns largely on the credibility of the witnesses. In assessing credibility, the trier of fact considers factors including witness demeanor, the presence or absence of corroborating evidence, the consistency of a witness's account over time, any discernible bias or personal interest, and the extent to which the testimony is coherent and consistent with common experience.

I find that Police Officer John Lattanzio is a disinterested percipient witness who testified credibly, consistently, and logically regarding his observations of Ms. Mariani in close temporal proximity to the alleged altercation.

I find that Mr. DeFranco's testimony is, in part, undermined by his lack of firsthand knowledge and his relationship with Respondent, rendering it of limited probative value. I find that Mrs. DeFranco's testimony, while based in part on first-hand observations, is nonetheless

affected by potential bias arising from her relationship with Respondent, as demonstrated by contradictory statements.

Turning to the accounts of the two directly involved parties, I find Ms. Mariani's testimony to be credible on the material issues before this Tribunal and, on balance, more reliable than Respondent's. In contrast, I find Respondent's testimony self-serving and illogical. The specific factors affecting each of their respective testimonies are discussed more fully below.

Specification 1: Engaging in a Physical Altercation & Preventing 911 Call

I find that the Department Advocate has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in a physical altercation with Ms. Mariani and that he withheld her phone to prevent her from calling 911.

For the most part, Ms. Mariani's testimony was compelling and internally consistent. Her demeanor on the witness stand reflected a willingness to be forthcoming with the Tribunal, as demonstrated by her admission that she scratched, hit, and bit Respondent during the altercation—admissions that did not paint her in a positive light. I further find that Ms. Mariani's prompt outcry for police assistance, as corroborated by the testimony of multiple witnesses, weighs in favor of her credibility. Her account of the incident remained detailed and largely consistent, particularly with respect to the core events, including Respondent's physical contact with her, his confiscation of her phone, and her struggle to break Respondent's hold on her.

Moreover, Ms. Mariani's account is well supported by the record in that her material factual assertions, including that Respondent pinned her to the ground, struck her in the face with her cell phone, whether inadvertently or otherwise, and remained in possession of her phone, are corroborated by forensic and photographic evidence, including bruising and redness to her face. (See Dept. Exs. 2A, 2B & 3). It is also significant that the bite marks on Respondent's arm are

consistent with Ms. Mariani's testimony that she bit him to free herself while pinned beneath him. (*See* Resp. Exs. A & B).

Additionally, photographic evidence depicting damage to Ms. Mariani's household phone supports her account that Respondent made a second attempt to prevent her from communicating with anyone. (*See* Dept. Exs. 1A-1D). To accept that Respondent did not break the house phone to impede Ms. Mariani's ability to call for police would require the Tribunal to infer that Ms. Mariani fabricated or exaggerated this aspect of her account, an inference not supported by the record.

That said, Ms. Mariani's account contained minor inconsistencies as to certain details of the altercation, specifically, who struck whom, when, and how. None of these inconsistencies were material to the central issues in this case. Likewise, to the extent her recollection was imperfect at times, such minor lapses are consistent with a witness recounting a stressful and rapidly unfolding event. For these reasons, I find Ms. Mariani's account to be credible.

In contrast, I find that Respondent's testimony lacks credibility and appears framed to deflect responsibility for his misconduct. As an interested party to this dispute, Respondent's account is shaped by his facing potential disciplinary consequences. I do not credit Respondent's assertion that Ms. Mariani caused her own injuries and that he acted solely in self-defense. Notably, Respondent's decision to bring his parents to the residence, despite what common sense suggests, would have been an awareness that Ms. Mariani was upset, undermines his claim that he was merely reacting to an unforeseen attack. The only evidence supporting Respondent's claim that he was attacked comes from his own testimony, corroborated solely by his mother's account, and is not supported by independent evidence. While these assertions are

self-serving and appear framed to obscure responsibility, it is Respondent's subsequent conduct that renders them particularly unpersuasive.

If Respondent had been the victim of an unprovoked attack, it would have been reasonable for him to seek police assistance. He did not. Instead, Respondent, who stands at approximately 5'10" and weighs approximately 215 pounds, significantly larger than Ms. Mariani, who is approximately 5'4" and 130 pounds, conceded that he did not contact law enforcement. This disparity in size and strength further undermines the plausibility of Respondent's account that he was overpowered and acting solely in self-defense. The physical evidence also undermines his version of events: the scratch marks on his neck begin at the back of the left side and extend toward the throat, consistent with Ms. Mariani's account that she scratched him while attempting to free herself from beneath him. (*See Resp. Ex F*).

In this context, such conduct may also reflect consciousness of guilt. Evidence of consciousness of guilt refers to post-incident conduct that may reasonably be interpreted as reflecting an awareness of wrongdoing. Such evidence, while not dispositive, may support an inference that a party's actions were not innocent when viewed considering the surrounding circumstances. Accordingly, while evidence of consciousness of guilt must be considered with care, its probative value is highly dependent upon the facts of each case.

Here, Respondent's conduct is not an isolated act, but a deliberate sequence of actions that, when viewed together, supports a strong inference of consciousness of guilt. Rather than facilitate contact with law enforcement, Respondent actively impeded Ms. Mariani's ability to seek assistance by retaining her cell phone after she attempted to call 911 and damaging the household phone, thereby eliminating any meaningful avenue for her to contact authorities. As a direct result, Ms. Mariani was forced to flee the residence, barefoot and carrying a child, to

obtain help. Respondent then followed her to the neighbor's residence while still in possession of her phone and admitted that he told Police Officer Lattanzio's wife not to contact the police. This pattern of conduct is fundamentally inconsistent with that of an individual acting in self-defense and instead supports the conclusion that Respondent was aware his actions were wrongful.

Similarly, Mrs. DeFranco's testimony is of limited probative value. Although she witnessed portions of the altercation and made certain concessions, including acknowledging that the physical confrontation continued after the alleged baseball bat was removed, her account is constrained by her relationship to Respondent and the resulting potential for bias. Moreover, her conduct during the incident further undermines the reliability of her account. Despite observing an escalating physical altercation involving her son, she did not meaningfully intervene, attempt to de-escalate the situation, or contact law enforcement at any point, including when the alleged baseball bat was being used against Respondent or when Ms. Mariani ran across the street crying out for help. This inaction is difficult to reconcile with her portrayal of events and diminishes the weight afforded to her testimony.

Mr. DeFranco's account is likewise of limited probative value due to his relationship with Respondent. While he observed events immediately following the incident, he lacked firsthand knowledge of the altercation itself. Given that Mr. DeFranco was not an eyewitness to the altercation that occurred inside the home, I credit his testimony only to the extent that it provides contemporaneous observations of Ms. Mariani's condition following the altercation, including her act of running across the street with a child while calling out for police assistance.

In sum, having carefully considered the testimony of all witnesses, both Respondent's and the Department's witnesses testified in a manner lending support to the conclusion that it is

more plausible that Respondent engaged in a physical altercation with Ms. Mariani and, with a guilty conscience, stunted her attempts to contact the police in order to avoid the consequences of his misconduct.

The credible, relevant evidence, including Respondent's in-court admission, establishes that, based upon the information he possessed before going to his residence that evening, Ms. Mariani would not be receptive to his return to their home. As such, he had sufficient time to formulate a less contentious approach to gathering his belongings, whether through his parents during their earlier visit or by other means. Even with that opportunity, the record supports the finding that Respondent chose to escalate the situation and use physical force to vindicate what he believed were his property rights. As such, I find no credible evidence from which to infer that Respondent was exercising self-defense in the altercation, which could have been avoided.

With respect to the retention of Ms. Mariani's phone, the Tribunal credits her narrative, in part because her assertion that Respondent took her phone from her was corroborated by multiple witness accounts of her running from her home to a neighbor's residence with her son while calling out for police assistance, and most notably, by Respondent's admission that he retained possession of her phone for a period of time during, and after, the altercation. He acknowledged that she requested police assistance while he had the phone, yet he neither returned it, nor contacted law enforcement, testifying in substance that he did not believe police involvement was necessary. In addition, her testimony that Respondent damaged the house phone was corroborated by independent evidence.

The most powerful evidence that Respondent retained Ms. Mariani's telephone for the purpose of preventing her from calling 911 is the unimpeached testimony of Police Officer Lattanzio, who testified credibly that Respondent told Mrs. Lattanzio not to call 911. Even

though Lattanzio only became involved in the altercation after the physical portion had concluded, when he heard Ms. Mariani state that Respondent had her phone, he immediately recognized the gravity of that act and advised Respondent to return it to her.

Despite Respondent's in-court denial that he did not withhold Ms. Mariani's phone or damage the house phone to prevent her from contacting 911, the totality of the credible, relevant evidence, and the logical inferences drawn therefrom, support a finding that this was precisely his purpose.

Based on the foregoing, I find Respondent Guilty of the sole Specification.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2012, has been found guilty of engaging in a physical altercation. The Department Advocate has recommended a penalty of 30 suspension days, previously served, a one-year period of dismissal probation and a 24-week counseling program. For the reasons set forth below, I find that penalty recommendation insufficient to address the seriousness of the misconduct of which Respondent has been found guilty.

The presumptive penalty for engaging in a physical act of domestic violence is 30 suspension days, dismissal probation and 24 weeks of counseling. The aggravated penalty is termination; there is no mitigated penalty.

The evidence establishes the existence of the following aggravating factors:

- The presence of children during the altercation: 10 penalty days.
- The confiscation of the victim's phone: 15 penalty days.
- Preventing the victim from calling 911: 15 penalty days.
- Physical injury: 10 suspension days – termination.

(Matrix at pp. 35, 37-38)

Respondent has previously served 30 suspension days in connection with this incident. He has no prior formal disciplinary history.

The evidence in this record clearly established that the incident was prejudicial to the good order, efficiency, or discipline of the Department based on Respondent's failure to avoid the reasonably foreseeable outcome of his unwanted presence at their shared residence, the absence of a credible claim of self-defense, and the apparently ego-driven nature of the altercation.

The incident on June 2, 2024, was both regrettable and avoidable. This Tribunal will not sit in judgement of either Respondent or Ms. Mariani for the state of their relationship on June 2, 2024. Intimate relationships fracture for many reasons, sometimes irrevocably; such is the human condition. In 2024, this Department received 110,665 domestic violence complaints (https://www.nyc.gov/assets/nypd/downloads/pdf/analysis_and_planning/domestic-violence/dv_complaints_2024.pdf). When Members of Service are directed to respond to those complaints, they do so to bring order to chaotic situations, protect the peace of the community and to facilitate the resolution of the parties' differences within the framework provided by law.

MOS bring their training, judgment and knowledge of human nature to bear for the benefit of all concerned.

In this case, the evidence established that Respondent blithely stepped into a potentially volatile environment which any reasonable Member of Service with his experience and training would have recognized as such. Respondent asserted at trial that he stayed away from his home the week before this incident because he was afraid for his safety. His actions in bringing his parents, and minor son, to the home as a disincentive against what he believed Ms. Mariani's likely reaction to his presence would be, were consistent with that line of thinking, albeit self-serving and reckless. Based upon the foregoing, Respondent's decision to appear at their home without any warning essentially meant a confrontation with Ms. Mariani. Whether her suspicion of infidelity was without any factual basis, or, as Respondent argued, she had been intoxicated, Respondent should have avoided placing himself in that position. If all he sought to accomplish was retrieving clothing for work, he could have done so through an intermediary, such as one of his parents, and likely avoided the foreseeable tumult which ensued.

Moreover, at no point during the encounter did Respondent appear to consider withdrawing, having miscalculated the likelihood of a fracas with Ms. Mariani. Instead, Respondent forged ahead with his self-serving balancing of his legal rights, against the risk of a spectacle, and caused his relationship drama to play out before his parents, minor son and neighbors, including a fellow Member of Service. Since Respondent admitted that he went to his house with his parents because he "felt safer" with them there and calculated that Ms. Mariani "wouldn't escalate with M present," he bears sole responsibility for the collateral effects of his decision upon his family.

This Tribunal is mindful that Ms. Mariani may well have been the initial aggressor in this scenario, but the weight of the evidence established that Respondent inflicted physical injury upon her during a physical altercation that never should have happened, and which he easily could have avoided. As I found in the factual analysis above, I do not find that any injuries suffered by Ms. Mariani during the altercation resulted from Respondent lawfully exercising self-defense.

Based upon the foregoing, I recommend a forfeiture of 65 days: the presumptive penalty of 30 suspension days (previously served); 15 vacation days for Respondent confiscating Ms. Mariani's phone and 15 vacation days for preventing her from calling 911, to run concurrently with each other; 10 vacation days for engaging in the altercation while Respondent's son, M, was present; and 10 suspension days for the infliction of physical injury upon Ms. Mariani. I further recommend that Respondent attend 24 weeks of counseling, and that he be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

APPROVED

JUL 28 2026
Jessie Jari
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Paul M. Gamble, Sr.
Paul M. Gamble, Sr.

Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
DETECTIVE LOUIS DEFRANCO
TAX REGISTRY NO. 952648
DISCIPLINARY CASE NO. C-030854

Respondent was appointed to the Department on July 11, 2012. On his most recent annual performance evaluations, he received 4.5 ratings of “Extremely Competent/Highly Competent” in 2022 and 2023. He has been awarded three Commendations, twelve medals for Meritorious Police Duty, and six medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with the instant matter, Respondent was suspended without pay from June 3, 2024, through July 2, 2024. He was also placed on Level 2 Discipline Monitoring in July 2024; ~~that~~ monitoring remains ongoing.

Paul M Gamble, Sr.
Assistant Deputy Commissioner Trials